

Global Alliance for Genomics and Health: Ethics Review Recognition Policy

Preamble

This document is the Global Alliance for Genomics and Health's (GA4GH's) Ethics Review Recognition Policy. It builds on the mission of the GA4GH and provides greater direction for the interpretation of the GA4GH *Framework for Responsible Sharing of Genomic and Health-Related Data* (the "[Framework](#)").

Research ethics review committees/boards, also known as Institutional Review Boards (hereafter known as RECs), review the ethical acceptability of research involving human participants and use of their biological samples and personal data. The steady growth of internationally collaborative, data-intensive, and population-based research projects has drastically increased the number of ethics reviews undertaken. Yet, there has not been a co-evolution of the ethics review system. This has led to proliferation of duplicative and potentially inconsistent ethics reviews of the same study across participating research sites. While some countries have enacted single ethics review policies *within* their jurisdiction to reduce the administrative burden, prevent delays, and reduce risk of inconsistency, no country permits multi-site research to be conducted with an approval from a REC situated outside its jurisdiction. Therefore, there is a need to establish a policy framework for improving mutual recognition among RECs in multi-site/multi-jurisdictional research.

This policy framework aims to inspire confidence among RECs and their managing authorities (e.g. institutions, regulatory authorities), as well as researchers and research participants alike, in the adequacy of an ethics review from another jurisdiction on the basis of the equivalency of the requirements of ethics review. As recognized in existing single REC review policies within the same jurisdiction, such a policy framework at the multi-jurisdictional level also would enhance the ethics review system's credibility and quality.

I. Context

1. **Purpose.** Supplementing the *Framework*, the purpose of this Policy is to provide a common effective baseline of the ethics review process for multi-jurisdictional research involving health-related personal data, through what are referred to in this Policy as "Essential Elements" (see Part III) and "Common Elements" of ethics review (see Part IV). Operationalizing these Essential Elements and giving due regard to these Common Elements should engender trust in the ethics review process followed in another jurisdiction and thereby recognition that the decision rendered by a REC from that jurisdiction is adequate.
2. **Resources.** The GA4GH has developed tools and resources to support its Policies. They are designed in accordance with the Foundational Principles of the *Framework*, so as to assist with data sharing, improving interoperability of consent forms, and streamlining of metadata procedures among RECs. The latest tools and resources developed by the GA4GH are available

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on its [website](#). Other organizations have also developed useful resources in this area, namely the World Health Organization's [Standards and Operational Guidance for Ethics Review of Health-Related Research with Human Participants](#) and the [International Compilation of Human Research Standards](#), compiled by the U.S. Office for Human Research Protections (OHRP).

3. **Recognizing differences.** Differences in the content or application of ethics principles, policies, or norms arise locally among institutions and jurisdictions but are not an insurmountable barrier to achieving ethics review recognition. Likewise, liability of institutions and individuals arising from ethics review recognition should not be unduly considered as a barrier to implementing recognition. Risk of liability related to recognition should be managed as any comparable liability risk, that is, according to the actual level of risk involved. The level of risk associated with ethics review recognition should be fairly evaluated in the context of all the liability risks usually assumed by the institutions or individuals. Risk management can be achieved through regulations, agreements, monitoring, and insurance.

II. Essential Elements of Ethics Review to Foster Recognition

The following Essential Elements are intended to complement and build upon existing human rights instruments, laws, regulations, guidelines, and practices. They are not intended to supersede any human rights instruments or national laws and regulations. Across jurisdictions, managing authorities of RECs and RECs should work together to achieve these Essential Elements.

Norms, Authority and Independence

- Norms of conduct in the ethics review and continued oversight of the research by REC should be established. These norms should be publicly accessible.
- Adequate authority and independence of the REC should be assured.
- RECs and their members should be free to make decisions on the ethical acceptability of a research application, and must be free of institutional (public and private), commercial and political influence, as well as real or perceived conflicts of interest.

Resources

- RECs should be resourced sufficiently such that they can carry out their mandate professionally in respect of the other Essential Elements of ethics review recognition.

Competence

- RECs should have competence regarding the ethics review of health-related data research, including members with adequate and complementary expertise or experience with such research.
- RECs should be permitted to seek advice from specialist referees regarding the ethical considerations of a research project that they deem to be particularly complex or outside the scope of their members' expertise. Terms of reference for referees should be established prior to any such consultation.



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- REC members should demonstrate competency through completion of continued education/training, and accreditation if possible, to meet these professional standards. This training should inform members of developments in ethics, regulation, data protection, science, policy, and technology that are relevant to the ethics review of research involving health-related data.
- Rules and composition (e.g. qualifications) of REC membership should be publicly available, though names of RECs members need not be.

Diligence

- RECs should make their decisions with diligence and also carefully communicate their requests and decisions to researchers, committee members, and other RECs.

Procedures and Forms

- Harmonization of procedures and forms required for ethics review should be promoted to maximize thoroughness and consistency of the content reviewed by the REC.
- Information and requirements related to research application submission procedures should be publicly accessible.

Proportionate Scrutiny

- The level of scrutiny of REC review should be proportionate to the actual and potential scale, benefits, risks, complexity and particularities of each research application under review. To this end, reference should be made to frameworks that enable RECs to undertake a systematic, comprehensive, and proportionate assessment of the risk-benefit profile of a research project.

Transparency

- A registry of RECs that operate in a particular legal jurisdiction (i.e. geographic area) should be established, made publicly accessible and continuously updated.
- Written, clear, and reasoned decisions of an unfavourable ethics review opinion or rejection should be provided by RECs to research applicants. All decisions should be kept on file.
- Subject to confidentiality agreements and, as the case may be, copies of a REC decision or opinion letter for a multi-jurisdictional research project involving health-related data, should be made available to the other RECs that may be involved in the same project, be it at a national or international level.
- RECs should consider making publicly available a repository of summarized forms of their final decisions.

Fairness and Equity

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- In order to maintain confidence in the evaluation and recognition systems, RECs should apply norms of due process. RECs should treat applicants equitably and subject them to a fair process of ethics review. This includes the possibility for the applicants:
 - to be heard (e.g. via correspondence or attendance of applicants at REC meetings to provide additional information and to answer questions);
 - to receive a timely, reasoned, ethics-based, and understandable decision; and
 - to ask for a reappraisal of a final decision to the same REC or to appeal to another REC or competent authority for a reappraisal (with a clear appeals process delineated in the specific arrangement for ethics review recognition in the research project).
- RECs should be subject to monitoring of their procedures by competent authorities.

Research Oversight

- RECs should maintain risk-adapted and ongoing ethical oversight of the research they approve, such as requiring researchers to submit periodic reports and to publish findings within a reasonable time period following the research project's conclusion.

Paediatric and Vulnerable Populations

- Ethics review of research with health-related data from paediatric and vulnerable populations (as defined in relevant national or international guidelines) should involve ethics committee member(s) or specialist referee(s)/advisors with specific expertise on research with such populations. Terms of reference for referees/advisors should be established prior to any such consultation.

Indigenous Peoples

- RECs involved in oversight of research with indigenous peoples (i.e. those who are the earliest known inhabitants of an area) should seek to partner with tribal advisory boards, elders, intertribal RECs, or the like to ensure community-level research protections that are in line with indigenous values and priorities.

III. Common Elements of Ethics Review to Foster Recognition

In reviewing the ethical acceptability of an application for multi-jurisdictional research involving health-related personal data, due regard should be given to the following elements:

- Expertise and experience of researcher(s)/investigator(s);
- Role of the sponsor(s);
- Merits and quality of the research protocol (e.g. study design; dissemination of findings/feedback to participants; documentation issues; research impact);
- Prior ethics review (if any);
- Study context and site(s) information;
- Specific health-related data research issues (e.g. relevant regulatory approvals);

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- Conflict of interest (e.g. financial, organizational, personal);
- Potential for waivers of consent;
- Consent process (e.g. participant identification and solicitation, information provided; type of consent used – written, explicit, broad, etc.; assent in cases of minors or adults with incapacity; informative material for minors; quality and comprehensibility; withdrawal);
- Potential risks and harms for participants, communities, and society;
- Potential benefits for participants, communities, and society, including assessment of the project's social value;
- Adequate assessment of the project's scientific integrity;
- Privacy and confidentiality (e.g. protection, access, control, security, retention, and disposal of the data; during and after research conduct and in publications or other reports; possible data reuse, compliance with relevant privacy/data protection regulations);
- Considerations for vulnerable populations;
- Potential compensation to participants (including assessment of the amount);
- Funding (e.g. researcher compensation/benefit; sufficiency and source of funding);
- Evidence of training, education, or experience of the researchers relevant to the ethical conduct of research involving health-related data;
- Policy for addressing incidental findings or return of results; and
- Legacy of the project-generated data, i.e. a plan for how the data generated by the project will be stored, archived, and become accessible for new research uses.

IV. Implementation Mechanisms and Amendments

1. Organizations and bodies supporting this Policy should take all reasonable and appropriate measures, whether of a regulatory, contractual, administrative or other character, to give effect to this Policy and promote its implementation, monitoring, and enforcement. Procedures and policies should be transparent and accessible. Attention should be paid to the interrelation of this Policy with other GA4GH Policies (e.g. Consent Policy, Data Privacy and Security Policy, Accountability Policy) and the Data Sharing Lexicon.
2. Any entity or individual supporting this policy may propose one or more amendments to the present policy by communicating the amendments to the GA4GH's Regulatory and Ethics Work Stream (REWS). The REWS shall publicly circulate such amendments for comments and possible inclusion in this policy.
3. The REWS, in collaboration with organizational members and other GA4GH Foundational and Technical Work Streams, will track and report on the adoption of this policy and its application. The REWS will also routinely review the policy's provisions; be aware of advances in basic research and technology; monitor ethical and legal developments, strive to ensure that this policy is fit for purpose; and encourage the creation of fora or other forms of communication to advance this practice.

Acknowledgements

This policy was developed by the Regulatory and Ethics Work Stream of the GA4GH, and is the result of the collaborative work, comments, and input of many individual and organizational contributors.



Policy Revision History

Policy Number/Version	Date Effective	Summary of Revisions
POL 004 / v. 1.0	13 February 2017	Original document
POL 004 / v. 2.0	8 July 2020	Policy revision